

Sri. Arun S/O. Gourish Goankar, vs Smt. Swapna Gaonkar, on 10 July, 2017

Bench: A.S.Bopanna, H.B.Prabhakara Sastry

:1:

IN THE HIGH COURT OF KARNATAKA,
DHARWAD BENCH

DATED THIS THE 10TH DAY OF JULY, 2017

PRESENT

THE HON'BLE MR.JUSTICE A.S.BOPANNA
AND
THE HON'BLE DR.JUSTICE H.B. PRABHAKARA SASTRY

M.F.A. NO.100725/2017 (MC)

BETWEEN:

SRI.ARUN S/O GOURISH GAONKAR,
AGE: 39 YEARS, OCC: UNEMPLOYED,
R/O NADUMASKERI-581343, TQ: KUMTA,
DISTRICT: UTTARA KANNADA. ...APPELLANT

(BY SRI.J.S.SHETTY, ADV.)

AND :

1. SMT.SWAPNA GAONKAR D/O
PRASANNA SANNAPPA GAONKAR,
AGE: 34 YEARS, OCC: TEACHER,
R/O NEAR K.E.B. OFFICE,
PURALKKIBENA, ANKOLA-581314,
TQ: ANKOLA.
2. KUMARI.SHREYA D/O ARUN GAONKAR,
MINOR REPRESENTED BY HER
GUARDIAN MOTHER, SMT.SWAPNA
GAONKAR D/O PRASANNA SANNAPPA
GAONKAR, R/O NEAR K.E.B. OFFICE,
PURALKKIBENA, ANKOLA-581314,
TQ: ANKOLA, DISTRICT: UTTARA KANNADA.
...RESPONDENTS

:2:

THIS APPEAL IS FILED U/S.28 OF THE HINDU MARRIAGE

ACT, AGAINST THE JUDGEMENT AND DECREE DATED
01.12.2016, PASSED IN MIS.CASE NO.7/2013 ON THE FILE OF
THE SENIOR CIVIL JUDGE, KUMTA, ITINERARY SITTING AT
ANKOLA, DISMISSING THE PETITION FILED U/SEC.25 OF THE
HINDU MARRIAGE ACT.

THIS APPEAL COMING ON FOR ADMISSION THIS DAY,
A.S.BOPANNA J., DELIVERED THE FOLLOWING:

JUDGMENT

The appellant herein is the former husband of the first respondent and the father of respondent No.2. Due to certain marital dispute between the appellant and respondent No.1, a proceeding in M.C.No.5/2010 was initiated, whereunder, on invoking Section 13(B) of the Hindu Marriage Act, the appellant and respondent No.1 had jointly sought for dissolution of their marriage. The Court below after taking note of the averments in the petition and the understanding reached between the parties had accepted the same and disposed of the petition through its judgment dated 02.02.2011.

2. In the said proceedings the parties having a female child was also taken into consideration and the custody of the child as agreed between the parties was allowed to remain with respondent No.1. However, keeping in view the responsibility of the appellant herein as the father of the said child, it was further indicated in the order portion based on the entirety of the petition that, the appellant herein would pay a sum of Rs.2,000/- p.m. as maintenance to the child for a period of one year commencing from January-2011 and the same was to be enhanced at the rate of Rs.500/- p.m. in addition to the existing amount at the end of every year. The appellant herein at the first instance having accepted the said order, has thereafter filed a miscellaneous petition under Section 25 of Hindu Marriage Act in Misc.No.7/2013 seeking modification of the said order dated 02.02.2011, only to the extent wherein an order had been made to pay the maintenance to the female child. The said petition was opposed by respondent No.1.

3. The Court below after taking note of the evidence, which was tendered by the appellant herein as PW.1 and the documents relied on at Exs.P.1 to P.12 and also the oral evidence of respondent No.1 as RW.1 has arrived at a conclusion that, there is no change in circumstances so as to call for modification of the order. Accordingly, the miscellaneous petition No.7/2013 has been dismissed. It is against the said order dated 01.12.2016, the appellant is before this Court.

4. Heard the learned counsel for the appellant and perused the appeal papers. The sequence of events as noticed above is not in dispute. The contention that is put forth is that though the parties had agreed in terms of Section 13(B) of the Hindu Marriage Act, the Court below had ultimately included the maintenance in the order portion. It is further contended that respondent No.1 herein is presently employed as a teacher and the appellant herein has lost his employment, therefore the maintenance as payable would be too harsh on the appellant and therefore the same be modified.

5. In that light, we have perused the reasons assigned by the Court below in the order impugned. At the outset, it is seen that the Court below has referred to the oral and as well as the documentary evidence. In a matter of the present nature when such consideration is made by the Court below,

even though the appellant herein contends that a sum of Rs.10,00,000/- was paid to respondent No.1 as full and final settlement and that she is presently employed as a teacher, the obligation of the appellant as a father of respondent No.2 would not get erased under any circumstances. Therefore, notwithstanding the fact that the maintenance as ordered to the child would be a portion to be borne by the appellant herein, the same would not be sufficient for her educational need as well, hence the respondent No.1 will also have to spend additional amount.

6. That apart, the contention as put forth that the appellant is presently not employed and is dependent on his father has also been noticed by the Court below and appropriately analysed to arrive at the conclusion, such contention cannot be accepted. Therefore, for all these reasons, we do not find any error committed by the Court below so as to call for interference in this appeal.

The appeal being devoid of merit stands dismissed.

Sd/-

JUDGE Sd/-

JUDGE Sh